

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK

JAMES KING,

Plaintiff,

-against-

CITY OF NEW YORK; NEW YORK CITY
POLICE DEPARTMENT; CHRISTOPHER
BRINKLEY, Tax 947719; JOHN DOES 1-3,

Defendants.

SUMMONS

Plaintiff designates
New York County
as the place of trial

The basis of venue is based on
CPLR § 504(3)

To the above-named Defendants:

YOU ARE HEREBY SUMMONED to answer the within verified complaint in this action and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance on Plaintiff's attorney within twenty (20) days after the service of summons, exclusive of the day of service or within thirty (30) days after the service is complete if this summons is not personally delivered to you within the State of New York; and in case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the notice set forth below and in the within verified complaint.

Dated: Orange County, New York
August 2, 2024

/s/ Jessica Gorman
Jessica Gorman, Esq.
LEBEDIN KOFMAN, LLP
Attorneys for Plaintiff
600 Old Country Road, Suite 205
Garden City, New York 11530
P: (212) 500-3273
E: jgorman@lebedinkofmanlaw.com

Defendants' Addresses:

CITY OF NEW YORK, 100 CHURCH STREET, NEW YORK, NY 10007

NEW YORK CITY POLICE DEPARTMENT, 1 POLICE PLAZA, NEW YORK, NY 10038

CHRISTOPHER BRINKLEY, Tax 947719; 7th PRECINCT DETECTIVE SQUAD, 19 ½ PITT STREET, NEW YORK, NY 10002

JOHN DOES 1-3, NYPD POLICE OFFICERS, ADDRESSES UNKNOWN

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK

JAMES KING,

Plaintiff,

VERIFIED COMPLAINT

-against-

CITY OF NEW YORK; NEW YORK CITY
POLICE DEPARTMENT; CHRISTOPHER
BRINKLEY, Tax 947719; JOHN DOES 1-3,

Defendants.

JAMES KING, by his attorneys, LEBEDIN KOFMAN LLP, complaining against Defendants CITY OF NEW YORK, NEW YORK CITY POLICE DEPARTMENT; CHRISTOPHER BRINKLEY, Tax 947719; and JOHN DOES 1-3, upon information and belief, alleges as follows:

INTRODUCTION

1. Plaintiff brings this action for compensatory damages and punitive damages under the common law of the State of New York, and for compensatory damages, punitive damages, and attorney's fees pursuant to 42 U.S.C. §§ 1983 and 1988 for violation of his rights under the United States Constitution, and under the laws and Constitution of the State of New York.

2. The allegations are based on the personal observations and/or experiences of the Plaintiff, and on information and belief, the sources thereof are documents prepared in connection with the incident and public documents and information relating thereto which are presently available to Plaintiff.

PARTIES

3. At all relevant times, the Plaintiff, JAMES KING, resided in New York County, City and State of New York.

4. At all relevant times, Defendant CITY OF NEW YORK (City) was and is a municipal corporation incorporated and existing under the laws of the State of New York.

5. At all relevant times, Defendant NEW YORK CITY POLICE DEPARTMENT (NYPD) was and is an agency of the City.

6. At all relevant times, Defendant City operated, controlled and managed Defendant NYPD.

7. At all relevant times, Defendant CHRISTOPHER BRINKLEY, Tax 947719, was a police officer with the NYPD working out of the 7th Precinct. He is sued in his individual and official capacities.

8. At all relevant times, Defendants JOHN DOES 1-3, NYPD police officers, were involved in the arrest, charging, and/or prosecution of Plaintiff. The identities of these Defendants are not yet known. They are sued in their individual and official capacities.

9. At all relevant times, the individual Defendants acted in the scope of their authority as public servants for the City of New York and the New York City Police Department.

10. At all relevant times, the Defendants acted under color of law, to wit, under the color of the Constitution, statutes, laws, rules, regulations, ordinances, charters, customs, policies, and usages of the City of New York and the State of New York.

FACTS

11. On October 18, 2018, the Plaintiff, James King, was falsely arrested by Defendant police officer Brinkley and charged with two counts of first-degree assault.

12. At about 11:30 pm the night before, a man walked up to another man standing in front of a bar and slashed him in the face, causing a several inches long laceration.

13. The victim immediately started bleeding profusely.

14. Witnesses said that the incident happened quickly and that the perpetrator was wearing a hoodie, which blocked them from seeing his full face, but they were able to give a general description.

15. He fled towards Houston Street with the victim's friend chasing after him.

16. Police responded and found a man in the subway station who matched the description of the suspect. **He also had blood splatter on his shirt.**

17. Inexplicably, the police did not search him and did not question him about the source of the bloods platter on his clothes, and they released him without doing a show up.

18. The police then saw Mr. King in the subway station. His height and clothing did not match the suspect's. He also had a walker, which he needs because he has an unstable gait, and a colostomy bag.

19. No witness described the perpetrator having a walker or any walking impairment at all.

20. **Mr. King also had no blood on him.**

21. Police detained Mr. King anyway then Defendant Brinkley arrested him after a questionable show up from a witness who admitted he did not get a good look at the suspect,

despite the fact that he had a walker and no one described the suspect with that, even though he had no blood on him, and despite the overall lack of evidence against him.

22. Defendants then charged and caused Mr. King to be prosecuted.

23. Upon information and belief, Defendants also maliciously misrepresented the facts and evidence to the district attorney and/or to the grand jury or withheld key facts and evidence from them.

24. For example, Defendant Brinkley testified for the grand jury that Mr. King matched the description of the suspect but he failed to note that his clothing was different than the suspect's. He also failed to note that the other person in the subway, who did match the description, had blood on his clothing.

25. Unable to make bail, Mr. King was incarcerated and remained so until August 9, 2021 when he was released.

26. He spent 1027 days incarcerated (2 years, 9 months, and 23 days).

27. Mr. King was acquitted on October 26, 2022.

28. In addition to being falsely arrested, maliciously prosecuted, and locked up for almost three years for crimes he did not commit, Mr. King also suffered through the covid-19 shutdown at Riker's. All of this took a mental and physical toll on him.

CAUSES OF ACTION

FIRST CAUSE OF ACTION AGAINST DEFENDANTS BRINKLEY AND DOES 1-3
PURSUANT TO 42 U.S.C. § 1983
MALICIOUS PROSECUTION

29. Plaintiff repeats, re-alleges, and incorporates by reference each and every allegation previously stated.

30. As set forth above, these Defendants caused Plaintiff to be prosecuted on charges despite the lack of sufficient legal cause and the evidence indicating he did not do what was alleged.

31. As a direct and proximate result of these unconstitutional acts, Plaintiff has been injured.

SECOND CAUSE OF ACTION AGAINST DEFENDANTS BRINKLEY AND DOES 1-3
PURSUANT TO 42 U.S.C. § 1983
VIOLATION OF RIGHT TO A FAIR TRIAL

32. Plaintiff repeats, re-alleges, and incorporates by reference each and every allegation previously stated.

33. As set forth above, these Defendants maliciously misrepresented to prosecutors and/or to the grand jury that Plaintiff assaulted the victim, despite the lack of evidence, which resulted in the deprivation of Plaintiff's liberty.

34. As a direct and proximate result of these unconstitutional acts, Plaintiff has been injured.

THIRD CAUSE OF ACTION AGAINST DEFENDANTS CITY AND NYPD
PURSUANT TO 42 U.S.C. § 1983
**IMPLEMENTATION OF POLICIES THAT DIRECTLY VIOLATE CONSTITUTIONAL
RIGHTS/FAILURE TO IMPLEMENT POLICIES AND PRACTICES TO AVOID
VIOLATIONS OF CONSTITUTIONAL RIGHTS AND FAILURE TO
TRAIN/SUPERVISE EMPLOYEES AND AGENTS**

35. Plaintiff repeats, re-alleges, and incorporates by reference each and every allegation previously stated.

36. Upon information and belief, Defendants City of New York and New York City Police Department have failed to institute and implement appropriate policies at the Police Department on a variety of subjects including arrests, searches, prosecution, and other areas of importance to the Constitutional rights of citizens and arrestees.

37. In the alternative, and upon information and belief, the City and NYPD have instituted policies addressing these topics but through gross negligence have demonstrated deliberate indifference to citizens and arrestees by failing or refusing to enforce them.

38. Upon information and belief, the City and NYPD have also failed to adequately hire, screen, and supervise police officers, and to provide adequate training regarding their duties as they relate to the Constitutional rights of citizens and arrestees.

39. As set forth above, Defendants Brinkley and John Does 1-3 caused Plaintiff's arrest and prosecution despite the lack of probable cause.

40. Defendant Brinkley has a documented history of credibility problems and of violating the civil and other rights of citizens.

41. In 2015, he fabricated charges against two people, claiming that he witnessed them engage in a drug sale in a bar. However, there was video which showed that Brinkley's claims were totally false and that the events he claimed happened did not in fact happen.

42. According to 50-a.org, Defendant Brinkley has had two exonerated (the conduct occurred but did not violate NYPD's own rules) CCRB complaints against him including for physical force in 2013 and 2016.

43. He has also been a defendant in at least 3 other lawsuits, all of which settled in Plaintiffs' favor. These include:

- a. Gordillo v. City of New York, et. al; SDNY 17-cv-04044, \$6000; in which defendant officers falsely arrested and caused plaintiff's prosecution on drug charges
- b. Albertorio v. City of New York, et. al; NY Supreme Court 162865/2015, \$100,000
- c. Zimmerman v. City of New York, et. al; NY Supreme Court 162866/2015, \$125,000

44. And he was "disciplined" with the loss of 10 vacation days for failing to conduct a proper investigation before making an arrest in 2017.

45. Despite this, this Defendant was promoted through the years.

46. Despite it being small, the 7th Precinct Detective Squad also has a documented history of other officers violating the civil and other rights of citizens for things like excessive force, illegal stops, illegal searches, making false official statements, and various kinds of misconduct and abuses of authority, including against sergeants.

47. There have also been a host of successful lawsuits against officers in this Squad including:

- a. Heng v. City of New York, et. al; Queens Supreme 704697/2021;
- b. Rolon v. City of New York, et. al; SDNY 15-cv-08614
- c. Canady v. City of New York, et. al; SDNY 13-cv-08783
- d. Evans v. City of New York, et. al; SDNY 14-cv-08611

- e. Brockett v. City of New York, et. al; NY Supreme 15721/2020
 - f. Beaumont v. City of New York, et. al; NY Supreme 159124/2016
 - g. Berkovitz v. City of New York, et. al; SDNY 17-cv-03399
 - h. Walker v. City of New York, et. al; NY Supreme 154925/2015
 - i. Booker v. City of New York, et. al; Kings Supreme 516228/2018
 - j. Morales v. City of New York, et. al; SDNY 15-cv-06573
 - k. Sterling v. City of New York, et. al; NY Supreme 162314/2014
 - l. Martinez v. City of New York, et. al; SDNY 14-cv-01640
48. Several other additional lawsuits are currently pending.
49. The violations against Mr. King occurred in accordance with this very culture, and these very practices policies, and customs, through the City and NYPD's failures to act on information indicating violations were occurring, and through its gross negligence in supervising subordinates, including the individual Defendants here.
50. These actions and inactions demonstrate malice, and they violated Mr. King's constitutional rights. As a direct and proximate result of these unconstitutional acts, he has been injured.

DEMAND FOR JURY TRIAL

51. Plaintiff hereby demands a jury trial.

PRAYER FOR RELIEF

WHEREFORE, Plaintiff demands the following relief:

- A. judgment for compensatory damages against all Defendants individually and collectively, on all causes of action, in an amount which exceeds the jurisdiction limitations of all lower courts and in an amount to be determined by a properly charged jury at the trial of this action;
- B. A judgment for punitive damages against all Defendants in an amount to be determined by a properly charged jury at the trial of this action;
- C. All attorney's fees, costs and interests;
- D. Any other relief this Court finds to be just, proper, and equitable.

Dated: Orange County, New York
August 2, 2024

/s/ Jessica Gorman
Jessica Gorman, Esq.
LEBEDIN KOFMAN, LLP
Attorneys for Plaintiff
600 Old Country Road, Suite 205
Garden City, New York 11530
P: (212) 500-3273
E: jgorman@lebedinkofmanlaw.com

ATTORNEY'S VERIFICATION

I, the undersigned, am an attorney duly admitted to practice law in the courts of the State of New York, and affirm the following to be true:

I am a member of Lebedin Kofman, LLP, the attorneys of record for Plaintiff.

I have read the foregoing Complaint, and know the allegations of fact stated therein, that the stated allegations of fact are true to my own knowledge except as to those allegations stated to be on information and belief, and as to those matters, I believe them to be true.

The grounds of my belief as to all matters stated to be upon information and belief are conversations with others known to me, my review of the documents contained in files maintained by my office in connection with this matter, my work on the case, and any investigation of the relevant facts and circumstances.

The reason I make this verification instead of Plaintiff is that Plaintiff is not presently within the county where Lebedin Kofman, LLP maintains its offices.

Dated: Orange County, New York
August 2, 2024

/s/ Jessica Gorman
Jessica Gorman, Esq.